

When someone tells you

Five sentences. About two minutes. No training required.

Treasured Vessels Girls' Centre

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treasuredvesselsuganda.org

SAY THESE, IN ROUGHLY THIS ORDER

1 “I believe you.”

Out loud, in those words, early. You are not a court, and believing her costs you nothing. Do not ask her to prove it, or why she did not speak sooner.

2 “This is not your fault.”

Also out loud, also in those words. She has already been told otherwise, probably more than once. Contradict it plainly.

3 “Are you safe right now?”

The only urgent question, and a practical one. Tonight, that house, the person who harmed her, the children. If she is in immediate danger, that changes the order of everything.

4 “Here is who I would have to tell.”

Before she says more, not after. For an adult: nobody, unless you ask me to, or unless a child is at risk. A disclosure she was tricked into is not consent.

5 “What would you like to happen next?”

Then start from her answer rather than your plan. “Nothing yet” is a legitimate answer. Say the offer stands, and mean it.

DO NOT

- ☐ **Publish her story.** Not on social media, not in a newsletter, not with initials, not with the details changed.
- ☐ **Confront the person responsible.** It warns him, it can destroy a prosecution, and she bears the consequences.
- ☐ **Push reconciliation.** The most common failure in community and faith settings, and the most damaging.
- ☐ **Demand proof.** You are not deciding a case.
- ☐ **Comment on her clothing, movements, drinking or marriage.** Even sympathetically. Especially sympathetically.
- ☐ **Promise secrecy you cannot keep.** Say what you will do and who you will tell.
- ☐ **Take over.** The one thing she has been deprived of is control over what happens to her.

IF SHE IS IN IMMEDIATE DANGER

116 Uganda Child Helpline, free on any network, 24 hours

The Child and Family Protection Unit at your nearest police station · your district probation and social welfare officer · a legal aid provider

Confidentiality, the law, and what to write down

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General information, not legal advice

CONFIDENTIALITY, AND ITS LIMITS

For an adult survivor, confidentiality is close to absolute. What she tells you is not discussed with her family, her employer, her church or anyone else. She decides who is told.

Where a child is at risk, that changes, whether or not the person disclosing is the child. A sexual act with anyone under eighteen is defilement under Ugandan law. Say so before she tells you more: *"If this involves a child being hurt, I will have to involve someone who can protect them. I will tell you who, and I will tell you before I do it."*

That sentence sometimes ends the conversation. Say it anyway. A woman who discovers later that you passed something on has learned, correctly, that you cannot be trusted.

WHAT THE LAW OFFERS

Domestic Violence Act 2010. Provides for interim and full protection orders, dealt with in sections 10 to 16. A survivor, or someone acting on her behalf, applies to a magistrates' court on the form set out in the Act, supported by an affidavit. An interim order can be made quickly where the situation is urgent.

Where to apply. Every magistrates' court can hear domestic violence matters and issue protection orders. Local council courts also have a role and can make a range of orders, which matters practically: an LC court is usually closer and cheaper to reach.

Other remedies. The Act allows for criminal sanctions, civil remedies and compensation, including costs and restitution. Criminal offences such as assault and defilement are prosecuted separately under the Penal Code.

The decision is hers. An adult survivor decides whether to pursue any of this, with qualified advice, and may decide not to. Pursuing a case she does not want is not support. Child protection duties are the exception and are not hers to waive.

WHAT TO WRITE DOWN, AND WHAT NOT TO

Record the minimum: that she consented, where she was referred, the general category of support sought, whether she attended, and what still needs doing.

Do not record the details of the assault, clinical details, or what she said about her family. Detail of that kind belongs with the statutory services, not in a community organisation's filing cabinet. A file cannot leak what it never held.

General information, not legal advice. For a specific situation, speak to a qualified legal practitioner or a legal aid provider. When in doubt, call 116 and ask.